

Vimla Devi v. Purvanchal Vidyut Bitaran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 20 November 2012 · WRIT - C No. 58399 of 2012 · **Writ disposed; relegated to Clause 6.5 with part-deposit and stay of recovery.**

HEADNOTE

A writ to quash a recovery citation for disputed electricity bills was disposed by requiring a specified deposit and relegating the consumer to a Clause 6.5 complaint before the Executive Engineer, with coercive recovery stayed until that complaint is decided and revival on default.

FACTUAL SUMMARY

Vimla Devi challenged a recovery citation dated 30 July 2012 for Rs 45,308 plus collection charges as electricity dues of Purvanchal Vidyut Bitaran Nigam Ltd. She pleaded that her house had remained closed for a long period, no meter reading was taken, and the bills were excessive. The licensee submitted that her remedy was a complaint under Clause 6.5 of the U.P. Electricity Supply Code, 2005. She offered to deposit one-third of the cited amount if her complaint were directed to be considered.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-complaint-to-executive-engineer

HOLDING

A writ seeking quash of a recovery citation for disputed electricity dues was disposed of by directing the consumer to deposit Rs 15,000 and to file a complaint before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the Engineer is to decide the complaint and may then recover any amount still due, coercive steps under the citation remaining stayed until that decision, with recovery reviving on the consumer's default. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILLS AND THE RECOVERY CITATION DATED 30 JULY 2012 WERE EXCESSIVE OR OTHERWISE ILLEGAL

Left to the Executive Engineer on a Clause 6.5 complaint after deposit of Rs 15,000. ¶ 1